Make My Trip India Pvt. Ltd. vs Damodar Shriniwas Prabhu on 18 January, 2023

BEFORE THE GOA STATE CONSUMER DISPUTES
REDRESSAL COMMISSION
PANAJI-GOA

In the matter of First Appeal 38 of 2021 in Consumer

Complaint 08 of 2020.

BEFORE: SHRI DHANANJAy A. JOG, PRESIDENT
ADv. MS. RACHNA A.M. GONSALvES, MEMBER

Make My Trip India Pvt. Ltd.
DLF CYBER, DLF PHASE -2,
Sector-25, Gurgaon,
Haryana,122002, India. .....Appellant

v.

Shri Damodar Shriniwas Prabhu,
s/o Shri Shriniwas Prabhu,
Shanti Sudha Colony,
near Shantadurga High School,
Bordem, Bicholim,
Goa. 403 504. .....Respondent

Advocate Shri Sagar Malkarnekar argues for Appellant.
Advocate Ms. V. Shetye represents Respondent.

DATE: 18/01/2023

1

JUDGEMENT

{per Shri Dhananjay A. Jog, President }

1. This Judgment and Order shall dispose of the Appeal filed on 24/09/2021.

2. The Appeal in turn, arises from Judgement dated 10/02/2021 by District Commission, North Goa, in Consumer Complainant CC/08/2020 before it.

3. Vide said Judgement, Appellant (Opposite Party at District Commission) was directed to refund the sum of Rs.3,93,272/- together with interest @15%; compensation of Rs.25,000/- & costs of Rs.10,000/.

4. Counsel Shri Malkarnekar for Appellant would argue that the Judgement by District Commission failed to appreciate the fact that Appellant acted merely as a facilitator for booking Air-tickets with the actual Service Provider, which is M/s Jet Airways.

5. That said M/s Jet Airways was not impleaded as a Party before the District Commission. Also that the District Commission failed to note that said M/s Jet Airways, having declared itself bankrupt; the NCLT (National Company Law Tribunal) has appointed an Interim Resolution Professional (IRP) on 20/06/2019 to deal with related issues.

6. Further that M/s Jet Airways has provided a list, which cites Appellant as one of the creditors and indicates there in the amount that M/s Jet Airways owes to Appellant [Make My Trip India Pvt. Ltd.].

7. Appellant accepts and appreciates that the facts of a similar case cited by Respondent (Complainant at the District Commission); -that of one Shri Pratap Parab;- are correct. M/s Jet Airways indeed refunded the full ticket amount (over Rs.1/- lakh) to said Shri Pratap Parab.

8. That this is explained by the fact that M/s Jet Airways could refund only a part amount to some of its creditors (ticket-buyers like present Respondent) while some others (like above Shri Pratap Parab) received their full refund. That the District Commission failed to appreciate this fact.

9. That in case of the present Respondent, M/s Jet Airways had refunded only a partial sum, amounting to Rs.15,822/-

10. Further that the Directorate General of Civil Aviation (DGCA) has issued Civil Aviation Requirements(CAR) dated 22/05/2008. Under Section-3, Series-M, Part-II thereof, the obligation to refund the amount in the event of Flight cancellation rests upon the concerned Airlines.

11. Per-contra, it is Respondent's contention that he had booked four tickets to travel from Goa to Miami, USA, and for subsequent return; for himself and three professional colleagues. That Rs.3,93,272/- was the full value of the said forward and return journey and that this sum was fully paid.

12. The forward journey was to be undertaken on 06/06/2019 and return on 15/06/2019. That on 18/04/2019, Respondent received an email from Appellant stating that the said Jet Airways flight

had been cancelled and that Respondent was eligible for partial refund of the un-utilized part of his itinerary.

13. Respondent also received further emails dated 10/07/2019 and 29/08/2019 from Appellant stating that Jet Airways had claimed Insolvency and Bankruptcy at the NCLT and that Appellant has filed a petition before the NCLT claiming monies from Jet Airways.

14. Respondent's valid and rightly asked query is: "Why, when Shri Pratap Parab (referred to in paragraphs 7 & 8 above) receives his full refund; that Respondent is not favoured with the same?"

15. We note that the question raised in paragraph 14 above is addressed by Appellant's contention recorded in paragraphs 8 & 9 above.

16. We find in the Impugned Order of the District Commission that the latter appears to have been confused and at times has treated Make My Trip and Jet Airways as a single entity.

17. The Impugned Order fails to realize the difference between the two entities. The former is a booking agent/an online platform for booking air tickets. The latter, Ms Jet Airways is an Airline Company.

18. In observing at paragraph 11 of the Impugned Order that "Complainant being Consumer is not governed with any internal business affairs of Jet Airways and the Opposite Party"; the District Commission differentiates between the two entities but at the same time wrongly calls their relationship as "Internal Affairs".

19. District Commission also has wrongly concluded in paragraph 12 of the Order that impleadment of Jet Airways was not necessary. In case the Consumer, being unaware, did not implead the Airline Company, the District Commission was authorized to order such impleadment and should have done so.

20. It was, after all in the aircraft belonging to M/s Jet Airways that Complainant was to fly to USA and back and for which he paid almost Rs.4,00,000/- for four tickets.

21. Having scrutinized all submissions furnished by Parties, in the records of the District Commission as well as those before us, and after hearing oral arguments preferred and in accordance with our above observations, we pronounce as follows, our: -

> ORDER a. The Appeal is partly allowed. b. Order dated 10/02/2021 in CC/08/2020 by District Commission is quashed and set aside. c. The matter is remanded back to District Commission, North with directions to re-hear, allow Parties to make their submissions and lead evidence and decide the same on its merits. d. The above should be done as expeditiously as possible, but not more than 6 months from the dates specified below.

e. Office of this Commission shall send Records of CC/08/2020 back to District Commission along with copy of this Judgment.

f. There no Order as to Costs. g. Parties shall appear before District Commission North on 08/02/2023 at 10:30 a.m. (or the next day if said Commission is not working on this date) [Shri Dhananjay A. Jog] President [Adv. Ms. Rachna A.M. Gonsalves] Member sn